



2026 South Dakota Legislature

House Bill 1102

SENATE STATE AFFAIRS ENGROSSED

Introduced by: Representative Baxter

1 **An Act to reschedule the date for filing certain annual reports.**

2 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF SOUTH DAKOTA:

3 **Section 1. That § 59-11-25 be AMENDED:**

4 **59-11-25.** ~~The first annual report shall be delivered to the Office of the Secretary~~
5 ~~of State before the first day of the second month of the year following the year in which~~
6 ~~a filing entity or qualified foreign entity, except~~Except in the case of a bank organized
7 pursuant to § 51A-3-1.1 and a limited partnership organized pursuant to chapter 48-7,
8 ~~was authorized to transact business. The subsequent annual report shall be delivered to~~
9 ~~the Office of the Secretary of State by the same date each subsequent year. any entity~~
10 that is required by law to file an annual report must do so:

11 (1) In the month representing the first-year anniversary of the entity's formation and
12 in each same month annually thereafter; or

13 (2) Beginning in the calendar year after the entity's formation, on or before January
14 thirty-first, and each January thirty-first thereafter.

15 At the time of formation, an entity shall indicate on the formation document which
16 filing date the entity has selected.

17 An entity that is in good standing with the secretary of state and observes the filing
18 date set in subdivision (1) may choose to observe the filing date set in subdivision (2) and
19 an entity that is in good standing with the secretary of state and observes the filing date
20 set in subdivision (2) may choose to observe the filing date set in subdivision (1), by
21 submitting to the secretary of state a change-of-filing-date form.

22 **Section 2.** This Act is effective beginning January 1, 2027.